

SUPREME COURT: BRONX COUNTY

INDEX#

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ALEXANDER GARCIA and ARIAM KERSHAW,

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK,
THE NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER MARIO DIEUJUSTE, individually and
in his official capacity as a New York City Police Officer,
POLICE OFFICER JOHN DOE#1 (the name
“John Doe” being fictitious as the true names of the
police officer that was in a car with P.O. Mario Dieujuste is
presently unknown), individually and in their official capacity
as New York City Police Officers,
POLICE OFFICER “PONDS”, individually and
in his official capacity as a New York City Police Officer,
POLICE OFFICER JOHN DOES#2-5 (the name
“John Doe” being fictitious as the true names of five
police officers are presently unknown), individually and
in their official capacity as New York City Police Officers,
Defendants.

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Plaintiffs, by their attorneys, FRAIDEN & FRAIDEN LLP, as and for a VERIFIED
COMPLAINT, upon information and belief, allege that at all times mentioned herein:

1. That the defendant, THE CITY OF NEW YORK, was and still is a Municipal Corporation duly incorporated and existing under and by virtue of the laws of the State of New York.
2. That the plaintiffs herein have complied with all of the conditions precedent to bringing this action against the above named defendants. A Notice of Claim was timely served upon the defendants within 90 days after the date of occurrence pursuant to law; more than 30 days have elapsed since service of said Notice of Claim and said claims remain unadjusted, and defendant has failed and refused to make adjustment, and this action is brought within 1 year and 90 days of the occurrence complained of.
3. That defendants failed to serve on plaintiffs’ counsel written Demand for an Examination of the plaintiffs in accordance with General Municipal Law 50-h(2) or have conducted said examinations.
4. That defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is an agency, department, subdivision or unit of the defendant THE CITY OF NEW YORK
5. That the defendant, THE CITY OF NEW YORK owned the defendant THE NEW YORK CITY

POLICE DEPARTMENT.

6. That the defendant, THE CITY OF NEW YORK operated the defendant THE NEW YORK CITY POLICE DEPARTMENT.
7. That the defendant, THE CITY OF NEW YORK managed the defendant THE NEW YORK CITY POLICE DEPARTMENT.
8. That the defendant, THE CITY OF NEW YORK supervised the defendant THE NEW YORK CITY POLICE DEPARTMENT.
9. That the defendant, THE CITY OF NEW YORK controlled the defendant THE NEW YORK CITY POLICE DEPARTMENT.
10. That the defendant, THE CITY OF NEW YORK employed the defendant THE NEW YORK CITY POLICE DEPARTMENT.
11. That the defendant, THE CITY OF NEW YORK instructed the defendant THE NEW YORK CITY POLICE DEPARTMENT.
12. That the defendant, THE CITY OF NEW YORK trained the defendant THE NEW YORK CITY POLICE DEPARTMENT.
13. That the defendants, POLICE OFFICER MARIO DIEUJUSTE, was and still is a duly appointed and acting officer, servant, employee and agent of defendant THE NEW YORK CITY POLICE DEPARTMENT, a municipal agency of the defendant THE CITY OF NEW YORK.
14. That the defendant POLICE OFFICER "PONDS" was and still is a duly appointed and acting officer, servant, employee and agent of defendant THE NEW YORK CITY POLICE DEPARTMENT, a municipal agency of the defendant THE CITY OF NEW YORK.
15. That the defendants POLICE OFFICER JOHN DOE#1, POLICE OFFICERS JOHN DOES#2-5 were and still are duly appointed and acting officers, servants, employees and agents of defendant THE NEW YORK CITY POLICE DEPARTMENT, a municipal agency of the defendant THE CITY OF NEW YORK.
16. That the defendant, THE CITY OF NEW YORK supervised the defendants POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5.
17. That the defendant, THE CITY OF NEW YORK controlled the defendants POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5.
18. That the defendant, THE CITY OF NEW YORK employed the defendants POLICE OFFICER

MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5.

19. That the defendant, THE CITY OF NEW YORK instructed the defendants POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5.
20. That the defendant, THE CITY OF NEW YORK hired the defendants POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5.
21. That the defendant, THE CITY OF NEW YORK trained the defendants POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5.
22. Upon information and belief, the limitations of liability set forth in Article 1601 of the CPLR do not apply to the causes of action set forth herein or one or more of the exemptions set forth in Section 1602 applies to the facts of this case.

AS AND FOR A FIRST CAUSE
FALSE ARREST

23. Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if herein set forth at length.
24. That on 7/14/2017 at approximately 7:30pm in front of "206 SAMY GOURMET DELI" located at 206 Willis Avenue, Bronx, New York, plaintiffs were aggressively approached by defendants POLICE OFFICER MARIO DIEUJUSTE and POLICE OFFICER JOHN DOE#1, members of THE NEW YORK CITY POLICE DEPARTMENT, stopped, seized, subjected to the use of excessive force, slammed onto the hood of a car, thrown and pressed against a car, subjected to twisting of their arms, placed in handcuffs that were applied too tightly, searched, searched a second time, and arrested by the defendants. The defendants seized diamond earrings from plaintiff ARIAM KERSHAW converting the diamond earrings for their own purposes and needs without the consent of the plaintiff who was the lawful owner of the earrings. The defendants damaged plaintiff ARIAM KERSHAW's eyeglasses. The plaintiffs were taken into custody, verbally abused, subjected to the use of physical force, and humiliated by the defendants. Plaintiff ALEXANDER GARCIA's had stitches on his thumbs. Defendants used excessive force and pressed on plaintiff ALEXANDER GARCIA's thumbs with excessive force when taking his fingerprints. Thereafter, plaintiffs were held in confinement and imprisoned for an extended period of time. Plaintiffs were denied food for an extended period

of time and refused medical assistance. Plaintiffs were forced to use disgusting toilets, and subjected to poor sanitation, infestation, inadequate nutrition, and other unacceptable and inhumane treatment while imprisoned. Plaintiff ARIAM KERSHAW was watched by defendants while using the toilet.

25. That defendants lacked sufficient and reasonable cause for believing that a crime had been committed and for believing that the plaintiffs had committed said crime.
26. That defendants lacked probable cause for believing that a crime had been committed and for believing that the plaintiffs had committed said crime.
27. That plaintiffs were aware of their arrest and did not consent to being arrested.
28. That defendants lacked legal authority to effect the arrest of the plaintiffs.
29. That defendants failed to follow proper procedures and acted improperly in arresting the plaintiffs.
30. That as a result of the aforementioned actions by the defendants, plaintiffs were wrongfully and falsely arrested and detained.
31. That on or about 5/17/2018 criminal proceedings were brought against the plaintiffs and said criminal proceedings were dismissed by the Court in a disposition favorable to the plaintiffs and on the merits.
32. That plaintiffs sustained serious personal injuries solely and wholly as a result of the aforesaid action of the defendants.
33. That by reason of the foregoing the plaintiffs were caused to sustain damages and are entitled to recover against the defendants money damages in a sum in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
FALSE IMPRISONMENT

34. Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if herein set forth at length.
35. That plaintiffs were taken into custody by the defendants and confined and imprisoned for an extended period of time.
36. That plaintiffs were aware of their confinement and did not consent to it.
37. The defendants lacked legal authority to imprison the plaintiffs.
38. That defendants failed to follow proper procedures and protocols and acted wrongfully in taking the plaintiffs into custody and confining them and imprisoning them.
39. That as a result of the aforementioned action of the defendants, the plaintiffs were caused to

lose their liberty and be incarcerated improperly and without good cause.

40. That as a result of the action of the defendants, plaintiffs sustained serious personal injuries solely and wholly as a result of the aforesaid action of the defendants.
41. That by reason of the foregoing the plaintiffs were caused to sustain damages and are entitled to recover against the defendants money damages in a sum in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

**DEPRIVATION OF RIGHTS UNDER THE UNITED STATES CONSTITUTION AND USC
1983 BY POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1,
POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5**

42. Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if herein set forth at length.
43. That defendants POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5 were duly appointed and acting officers of THE NEW YORK CITY POLICE DEPARTMENT acting under color of law.
44. That plaintiffs are citizens of the United States and residents of the State of New York.
45. That defendants, by their conduct and actions in unreasonably searching, unreasonably seizing, falsely arresting, handcuffing, confining and imprisoning the plaintiffs in the absence of reasonable and probable cause, assaulting, battering, and failing to intercede on behalf of plaintiffs, failing to protect them from the unjustified and unconstitutional treatment they received, the defendants acting with animus, and under color of law and without lawful justification, intentionally maliciously and with deliberate indifference to and/or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of plaintiffs' constitutional rights as guaranteed under 42 U.S.C. 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.
46. That defendants seized diamond earrings from plaintiff ARIAM KERSHAW converting the diamond earrings for their own purposes and needs without the consent of the plaintiff who was the lawful owner of the earrings.
47. That defendants deprived the plaintiffs of the following rights under the United States Constitution:
- a. Freedom from summary punishment;
 - b. Freedom from cruel and inhuman punishment;
 - c. Freedom from illegal search and seizure;

- d. Freedom from assault to the persons of the plaintiffs;
 - e. Freedom from battery during the arrest process;
 - f. Freedom from malicious prosecution;
 - g. Freedom from the taking of his property.
48. That defendants deprived the plaintiffs of their rights, privileges and immunities guaranteed and secured by the Fourth and Fourteenth Amendments to the United States Constitution and the Constitution of the State of New York including their rights to liberty and to be secure in person and free from the use of unreasonable force.
49. As a result of the foregoing, plaintiffs were deprived of their liberty, and were caused to sustain damages and are entitled to recover against the defendants money damages in a sum in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE UNITED STATES CONSTITUTION AND
U.S.C. 1983 BY THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE
DEPARTEMENT

50. Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if herein set forth at length.
51. That defendant THE CITY OF NEW YORK acting through its police department, department of correction and through defendants POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5 had in effect actual and/or de facto policies, practices, customs, and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
52. At all times material to this complaint, defendant THE CITY OF NEW YORK acting through its employees, agents, servants, and representatives had in effect actual and/or de facto policies, practices, customs, and usages of failing to require its employees, agents, and servants including POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5 to comply with the rules and regulations of the The City of New York and The New York City Police Department, and in failing to require compliance with the United States Constitution, the New York State Constitution, and the laws of the United States and the State of New York.
53. The aforementioned customs, practices procedures and rules of defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT include but are not limited to: arresting persons known to be innocent in order to meet "productivity goals"; falsely swearing out criminal complaints and/or lying and committing perjury during sworn testimony

to protect other officers and meet productivity goals; failing to supervise, train, instruct, and discipline police officers thereby encouraging misconduct and exhibiting deliberate indifference towards the constitutional rights of persons within the officers jurisdiction; discouraging police officers from reporting the corrupt or unlawful acts of other officers; retaliating against officers who report police misconduct; withholding evidence and/or misrepresenting or falsifying evidence; failing to require that probable cause must be present before an arrest can be made, failing to require a search warrant or exigent circumstances be present before a person or person's property is searched and seized; and failing to intervene to prevent the above mentioned practices when they reasonably could have been prevented with proper supervision.

54. Pursuant to the aforementioned policies, practices, and/or customs, the employees, representatives and/or agents failed to intervene in or report defendants violations of plaintiff's rights.
55. At all times material to this complaint, defendant THE CITY OF NEW YORK acting through its employees, agents, servants, and representatives including defendants POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5 had in effect actual and/or de facto policies, practices, customs, and usages of failing to properly train, screen, supervise, and discipline employees and police officers, and of failing to inform the individual defendants' supervisors of the need to train, screen supervise and discipline said defendants. Such failure to train, screen supervise, and discipline results in unreasonable searches, unreasonable seizures, arrests not supported by reasonable or probable cause, assaults, batteries, and the excessive use of force.
56. The aforementioned policies, practices, customs and usage were a direct and proximate cause of the unconstitutional conduct alleged herein.
57. All of the foregoing acts by defendants deprived plaintiffs of their federally protected rights including but not limited to the constitutional rights enumerated herein.
58. Defendants deprived the plaintiffs of their rights, privileges and immunities guaranteed and secured by the Fourth and Fourteenth Amendments to the United States Constitution and the Constitution of the State of New York including his right to liberty and to be secure in person and free from the use of unreasonable force.
59. As a result of the foregoing, plaintiffs were deprived their liberty, and were caused to sustain damages and are entitled to recover against the defendants money damages in a sum in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

MALICIOUS PROSECUTION

60. Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if herein set forth at length.
61. That defendants, their employees, servants, and agents acted improperly and wrongfully in arresting and detaining the plaintiffs.
62. That defendants, their employees, servants, and agents improperly and wrongfully initiated criminal proceedings against the plaintiffs and attempted to prosecute the plaintiffs.
63. That on 7/14/2017 until the time of dismissal of the charges defendants deliberately and maliciously prosecuted the plaintiffs, innocent persons, without any probable cause whatsoever, by filing or causing a complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiffs of violations of the criminal laws of the State of New York.
64. That said criminal complaint was not supported by non-hearsay allegations.
65. That defendants, their agents, servants and employees, failed to take reasonable steps to stop the prosecution of the plaintiffs and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the plaintiffs.
66. That defendants, their employees and agents acted intentionally and with malice in initiating and prosecuting said criminal proceedings against the plaintiffs in the absence of probable cause for the initiation of criminal proceedings and in the absence of a reasonable chance of prevailing.
67. That the commencement of these criminal proceedings was malicious and began in malice and without probable cause, so that the proceedings could succeed by the defendants.
68. That as a result of the aforementioned criminal proceedings that were instituted against them, plaintiffs were compelled to obtain attorneys to defend themselves.
69. That as a result of the aforementioned criminal proceedings that were instituted against them, plaintiffs were compelled to appear in court on multiple occasions to defend himself from the false charges in said criminal proceeding.
70. That aforesaid criminal proceeding was terminated by the Criminal Court of the City of New York, Bronx County in favor of the plaintiffs, on the merits, and in a manner consistent with plaintiffs' innocence.
71. That as a result of the action of the defendants, plaintiffs sustained serious personal injuries solely and wholly as a result of the aforesaid action of the defendants.

72. That by reason of the foregoing the plaintiffs were caused to sustain damages and are entitled to recover against the defendants money damages in a sum in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION, AND TRAINING

73. Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if herein set forth at length.

74. That defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, were under a duty to hire competent agents, servants, and employees and to terminate incompetent agents, servants, and employees.

75. That defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, hired agents, servants, and employees including the defendants POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5, that lacked the requisite judgement, discretion, experience, training, and competence.

76. That there were prior complaints concerning the agents, servants, and employees of defendants POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5, involving their misconduct, dereliction of duty, lack of competence, lack of judgment and discretion, failure to follow proper procedures and protocols, intentional wrongdoing, excessive use of force, violations of constitutional rights, including complaints of prior similar incidents to those complained of herein.

77. That the defendants THE CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT intentionally, knowingly, and/or with reckless indifference did disregard and/or failed to investigate the complaints involving the defendants' employees, agents, and servants, did investigate such incidents but failed to take such corrective action as was necessary, and therefore acted recklessly and with gross indifference and callous disregard in failing to remedy the situation.

78. That there were prior incidents concerning the agents, servants, and employees of defendants POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5, involving their misconduct, dereliction of duty, lack of competence, lack of judgment and discretion, failure to follow proper procedures and protocols, intentional wrongdoing, excessive use of force,

violations of constitutional rights, including prior similar incidents to those complained of herein.

79. That there were prior disciplinary proceedings against the agents, servants, and employees of defendants POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5, involving their misconduct dereliction of duty, lack of competence, lack of judgment and discretion, failure to follow proper procedures and protocols, intentional wrongdoing, excessive use of force, violations of constitutional rights, including complaints of prior similar incidents to those complained of herein.
80. That, upon information and belief, the defendants intentionally, knowingly, and/or with reckless indifference did disregard and/or failed to investigate the prior incidents involving the defendants' employees, agents, and servants, did investigate such incidents but failed to take such corrective action as was necessary, and therefore acted recklessly and with gross indifference and callous disregard in failing to remedy the situation.
81. That defendants THE CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT, were negligent and reckless in their hiring of and in their retention of their agents, servants, and employees, including the defendants POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5, which caused the plaintiffs to sustain injury without any negligence on the part of the plaintiffs contributing thereto.
82. That defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, negligently and recklessly failed to terminate agents, servants, and employees including the defendants POLICE OFFICER MARIO DIEUJUSTE, POLICE OFFICER JOHN DOE#1, POLICE OFFICER "PONDS", AND POLICE OFFICERS JOHN DOES#2-5, which caused the plaintiffs to sustain injury, without any negligence on the part of the plaintiffs contributing thereto.
83. Defendants acted both negligently and/or recklessly and/or with gross negligence. Punitive damages are claimed.
84. Plaintiffs will rely upon the doctrine of Res Ipsa Loquitor.
85. That by reason of the foregoing the plaintiffs were caused to sustain damages and are entitled to recover against the defendants money damages in a sum in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION

ASSAULT AND BATTERY

86. Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if herein set forth at length.
87. That defendants forcibly placed their hands on the plaintiffs against plaintiffs wishes and against plaintiffs will. Defendants intentionally, and maliciously assaulted and battered the plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact, and defendants made violent and/or menacing acts which threatened such contact to the plaintiffs and caused the plaintiffs to suffer apprehension of such contact.
88. That defendants in a hostile and/or offensive manner touched the plaintiffs without plaintiffs consent and with intention of causing offensive bodily contact to the plaintiff, and defendants battered the plaintiffs by placing their hands on the plaintiffs, seizing the plaintiffs, throwing the plaintiffs against a car, twisting the plaintiffs arms, and placing them in handcuffs that were applied too tightly, dragging the plaintiffs, pressing on plaintiff ALEXANDER GARCIA's thumbs, and terrorizing the plaintiffs while they were in custody and being transported to court, and also caused the plaintiff to fear of death or injury, suffer anxiety, emotional, and psychological trauma.
89. That defendants acted intentionally.
90. That defendants acted without privilege and without permission from the plaintiffs.
91. That plaintiffs sustained serious personal injuries solely and wholly by reason of the aforesaid actions of the defendants, made intentionally, maliciously, publicly and falsely; that as a result thereof plaintiffs were subjected to great indignities, personal embarrassment, humiliation and ridicule, and was greatly injured in his credit and circumstances and caused to suffer much pain in the mind and body.
92. That by reason of the foregoing the plaintiffs were caused to sustain damages and are entitled to recover against the defendants money damages in a sum in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION**NEGLIGENCE**

93. Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if herein set forth at length.
94. That the defendants, their agents, servants, employees, and representatives negligently caused serious personal injuries solely and wholly as a result of the aforesaid actions of the defendants.
95. That by reason of the foregoing the plaintiffs were caused to sustain damages and are entitled to recover against the defendants money damages in a sum in excess of the jurisdictional limits of

all lower courts which would otherwise have jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

96. Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if herein set forth at length.
97. That the defendants' aforementioned acts were extreme, shocking and outrageous.
98. That the defendants' aforementioned acts were intended to cause infliction of emotional distress to the plaintiffs or disregarded a substantial probability of causing emotional distress to the plaintiffs.
99. That the defendants' aforementioned acts did cause infliction of emotional distress on the plaintiffs.
100. That by reason of the foregoing the plaintiffs were caused to sustain damages and are entitled to recover against the defendants money damages in a sum in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A TENTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

101. Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if herein set forth at length.
102. That the defendants aforementioned acts and omissions negligently caused a traumatic event that caused the plaintiffs to sustain emotional distress.
103. That defendants negligently caused emotional distress and damage to plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of emotional injury to plaintiffs.
104. That by reason of the foregoing the plaintiffs were caused to sustain damages and are entitled to recover against the defendants money damages in a sum in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
CONVERSION

105. Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if herein set forth at length.
106. That plaintiff ARIAM KERSHAW is the sole and rightful owner of a pair of diamond earrings. Said diamond earrings possessed great sentimental and emotional value.
107. That plaintiff ARIAM KERSHAW is the sole and rightful owner of a pair of a pair of eyeglasses.
108. That defendants have no possessory rights to the aforementioned earrings and

eyeglasses.

109. That defendants converted plaintiff's diamond earrings and eyeglasses, in reckless and willful disregard of plaintiff's rights.
110. That by reason of the foregoing the plaintiffs were caused to sustain damages and are entitled to recover against the defendants money damages in a sum in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiffs demand judgment as against the defendants in the

FIRST CAUSE OF ACTION in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with punitive damages, in the SECOND CAUSE OF ACTION in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with punitive damages, in the THIRD CAUSE OF ACTION in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with punitive damages, in the FOURTH CAUSE OF ACTION in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with punitive damages, in the FIFTH CAUSE OF ACTION in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with punitive damages, in the SIXTH CAUSE OF ACTION in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with punitive damages, in the SEVENTH CAUSE OF ACTION in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with punitive damages, in the EIGHTH CAUSE OF ACTION in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with punitive damages, in the NINTH CAUSE OF ACTION in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with punitive damages, in the TENTH CAUSE OF ACTION in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with punitive damages, in the ELEVENTH CAUSE OF ACTION in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with punitive damages, together with costs, interest, and disbursements of this action.

Fraiden & Fraiden LLP
Attorneys for Plaintiffs
327 East 149th Street
Bronx, New York 10451
(718) 993-9911

VERIFICATION

STATE OF NEW YORK: COUNTY OF BRONX:

Being duly sworn deposes and says: I am the plaintiff in the
action herein; I have read the annexed

(☒) Complaint

() Answer to Counter Claim

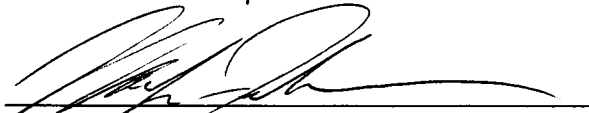
() Bill of Particulars

() Supplemental / Amended Bill of Particulars

know the contents thereof and the same are true to my knowledge, except those
matters therein which are stated to be alleged on information and belief, and
as to the matters I believe them to be true.

x Anam Kest

Sworn to before me this
10th day of April 2018


NOTARY PUBLIC

MARK GERALD FRAIDEN
Notary Public, State of New York
No. 02FR6295205
Qualified in New York County
Commission Expires December 30, 2021

VERIFICATION

STATE OF NEW YORK: COUNTY OF BRONX:

Being duly sworn deposes and says: I am the plaintiff in the
action herein; I have read the annexed

(☒) Complaint

() Answer to Counter Claim

() Bill of Particulars

() Supplemental / Amended Bill of Particulars

know the contents thereof and the same are true to my knowledge, except those
matters therein which are stated to be alleged on information and belief, and
as to the matters I believe them to be true.

x MAG

Sworn to before me this
10th day of April 2018



NOTARY PUBLIC

MARK GERALD FRAIDEN
Notary Public, State of New York
No. 02FR6295205
Qualified in New York State
Commission Expires

MARK GERALD FRAIDEN
Notary Public, State of New York
No. 02FR6295205
Qualified in New York County
Commission Expires December 30, 2021